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Burma

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Burma continued to be ruled by a highly authoritarian military regime. Repressive military governments dominated by members of the majority Burman ethnic group have ruled the ethnically Burman central regions and some ethnic-minority areas continuously since 1962, when a coup led by General Ne Win overthrew an elected civilian government. Since September 1988, when the armed forces brutally suppressed massive prodemocracy demonstrations, a junta composed of senior military officers has ruled by decree, without a constitution or legislature. In 1997 the junta reorganized itself and changed its name from the State Law and Order Restoration Council (SLORC) to the State Peace and Development Council (SPDC). The Government continued to be headed by armed forces commander General Than Shwe, although Ne Win, who retired from public office during the 1998 prodemocracy demonstration, may continue to wield informal but declining influence. In 1990 the junta permitted a relatively free election for a parliament to which the junta announced before the election that it would transfer power. Voters overwhelmingly supported antigovernment parties with the National League for Democracy (NLD) winning more than 60 percent of the popular vote and 80 percent of the parliamentary seats. Throughout the 1990's, the junta systematically violated human rights in Burma to suppress the prodemocracy movement, including the NLD, and to thwart repeated efforts by the representatives elected in 1990 to convene. Instead, the junta convened a government-controlled "National Convention" intended to approve a constitution that would ensure a dominant role for the armed forces in the country's future political structure. Since 1995 the NLD has declined to participate in this National Convention, perceiving its agenda to be tightly controlled by the junta. More than a dozen armed ethnic groups continued to rule or to exercise some governmental functions in peripheral ethnic minority areas under various cease-fire agreements negotiated with the junta between 1989 and 1995. The judiciary is not independent of the junta.

Since 1988 the junta has more than doubled the size of the armed forces, from about 175,000 to more than 400,000 men, and has increased the Government's military presence throughout the country, especially in ethnic minority areas from which government forces were not excluded by cease-fire agreements. The Government reinforces its firm military rule with a pervasive security apparatus led by the military intelligence organization, the Directorate of Defense Services Intelligence (DDSI). Control is buttressed by arbitrary restrictions on citizens' contacts with foreigners, surveillance of government employees and private citizens, harassment of political activists, intimidation, arrest, detention, and physical abuse. The Government justifies its security measures as necessary to maintain order and national unity. Members of the security forces committed numerous, serious human rights abuses.

Burma is a poor country with a population said by its Government to number about 48 million. Average per capita income was estimated to be about \$300, but about \$800 on a purchasing power parity basis. More than 3 decades of military rule and mismanagement have resulted in widespread poverty. Primarily an agricultural country, Burma also has substantial mineral, fishing, and timber resources. From 1988 to 1995, the Government partly liberalized and opened the economy and thereby reversed the economic contraction of the 1980's. However, economic growth has slowed since the mid-1990's as the junta has retreated from economic liberalization in response to a worsening foreign exchange shortage. Obstacles to growth include extensive overt and covert state involvement in economic activity, state monopolization of leading exports, a bloated bureaucracy, arbitrary and opaque governance, institutionalized corruption, poor human and physical infrastructure, and disproportionately large military spending at the expense of social development spending and stable prices.

The Government's extremely poor human rights record and longstanding severe repression of its citizens continued during the year. Citizens continued to live subject at any time and without appeal to the arbitrary and sometimes brutal dictates of the military regime. Citizens did not have the right to change their government. There continued to be credible reports, particularly in ethnic minority-dominated areas, that soldiers committed serious human rights abuses, including extrajudicial killings and rape. Disappearances continued, and members of the security forces tortured, beat, and otherwise abused detainees. Prison conditions remained harsh and life threatening, but improved slightly in some prisons after the International Committee of the Red Cross (ICRC) gained access to prisons in May. Arbitrary arrest and detention for expression of dissenting political views continued with increasing frequency; the Government continued to detain more than 55 members-elect of Parliament and hundreds of other NLD supporters to prevent the party from convening the parliament elected in 1990. Since 1962 thousands of persons have been arrested, detained, or imprisoned for political reasons; more than 1,300 political prisoners remained at year's end. The judiciary is not independent. The Government continued to infringe on citizens' privacy rights, and security forces continued systematically to monitor citizens' movements and communications, to search homes without warrants, and to relocate persons forcibly without just compensation by due process. During the year, those suspected of or charged with prodemocratic political activity were subjected to increased surveillance and harassment. Security forces continued to use excessive force and to violate international humanitarian law in internal conflicts against ethnic insurgencies. The regime forcibly relocated large ethnic minority populations in order to deprive armed ethnic groups of civilian bases of support.

The SPDC continued severely to restrict freedom of speech and of the press. The junta restricted academic freedom; most universities have been closed since 1996 due to fear of political dissent. The junta severely restricted freedom of assembly, and systematically intensified its restriction of freedom of association, pressuring many thousands of members to resign from the NLD political party and closing party offices nationwide. Since 1990, the junta frequently has prevented the NLD and other prodemocracy parties from conducting normal political activities. Although the junta continued to recognize the NLD as a legal entity, it also continued to refuse to recognize the legal political status of key NLD party leaders, particularly its general secretary and 1991 Nobel laureate, Aung San Suu Kyi, and the two party cochairmen, and to constrain their activities severely through security measures and threats. During the year, the SPDC intensified its systematic use of coercion and intimidation to deny citizens the right to change their government. In August 1998, the NLD leadership organized a 10-member Committee Representing the People's Parliament (CRPP) to act on behalf of the Parliament. The junta has responded by intensifying its campaign to destroy the NLD without formally banning it, by intimidating several elected representatives into resigning from the parliament, by detaining 55 other elected representatives, and by pressuring constituents to sign statements of no confidence in others. The junta restricted freedom of religion; it continued its institutionalized control over Buddhist clergy in order to restrict efforts by some Buddhist clergy to promote human rights and political freedom, and government authorities coercively promoted Buddhism over other religions in some ethnic minority areas. The Government imposed restrictions on certain religious minorities. The Government continued to restrict freedom of movement and in particular foreign travel by female citizens; the junta also continued to restrict Aung San Suu Kyi's freedom to leave her residence or to receive visitors. The Government did not allow domestic human rights organizations to exist, and remained generally hostile to outside scrutiny of its human rights record. Violence and societal discrimination against women remained problems. The junta continued severely to neglect the education of children by underfunding public schools. There was governmental and societal discrimination against ethnic minorities, and animosities between the Burman majority and ethnic minorities continued. The Government continued to restrict worker rights, ban unions, and use forced labor for public works

and to produce food and other daily necessities for military garrisons. Forced labor including forced child labor was a serious problem. The forced use of citizens as porters by the army--with attendant mistreatment, illness, and sometimes death--remained a common practice. The Government did not honor its repeated pledge to prevent its officials from using their authority under the country's Towns Act and Villages Act to mobilize forced labor. In June the Government responded to sanctions that the International Labor Organization (ILO) imposed on it for its use of forced labor by unilaterally withdrawing from the convention on forced labor administered by the ILO. Child labor is also a problem, and varies in severity depending on the region. Trafficking in persons, particularly in women and girls to Thailand and China, mostly for the purposes of prostitution, remained widespread.

Insurgent forces committed numerous abuses, including killings, rapes, forced labor, and the forced use of civilians as porters.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Political and Other Extrajudicial Killing

There continued to be many credible reports of extrajudicial killings by soldiers of noncombatant civilians, particularly in areas of ethnic insurgencies (see Section 1.g.).

There were numerous detailed but unconfirmed reports that army soldiers indiscriminately shot and killed ethnic Karen, including women and children, in villages in the Thaton District of Mon State during the first half of the year.

Brutal treatment by soldiers also caused deaths among those impressed as military porters for use in counterinsurgency operations in areas of ethnic insurgencies. According to reports, porters who no longer can work often are either abandoned without medical care or assistance, or executed (see Section 6.c.). There also continued to be detailed reports that physical abuse and neglect by army soldiers resulted in the death of persons forced to labor on physical infrastructure projects (see Section 6.c.). An exile Chin nationalist organization reported that on May 5, soldiers beat and killed Pa Za Kung, a man from Vomkua village in Chin State's Thantlang Township, for resting without permission while being forced to help build a road from Thantlang to Vuangtu village. While these reports are unconfirmed, the Government's general disregard for human rights has created a climate that is clearly conducive to such abuses.

Some inmates died in prisons and labor camps, or shortly after being released from them, due to torture or to denial of adequate medical care and harsh conditions (see Section 1.c.). On May 23, in Depayin Town in Sagaing Division, 25-year-old Kyi Khaing died after 10 hours in police custody; he was arrested for verbally abusing his aunt. Although police initially informed his family that he hanged himself, his body had a broken pelvis and many bruises, and in the course of a subsequent investigation police sergeant Sein Win reportedly confessed to beating Kyi Khaing to death; however, no action was taken against Sein Win, who subsequently disappeared. On July 1, NLD member-elect of Parliament Kyaw Min died of hepatitis contracted during his incarceration in Rangoon's Insein Prison from May 1996 to May 1998; he had been detained along with hundreds of other members-elect of Parliament in 1996 for attempting to convene the Parliament elected in 1990. On May 21, NLD member Hla Khin died in Insein prison, allegedly a suicide. He had been detained in 1998 for traveling on a public road to witness the detention of Aung San Suu Kyi, who was prevented by security forces from traveling to a town in the western part of the country (see Section 1.d.).

Some insurgent groups also committed extrajudicial killings. In March near three pagoda's pass in the eastern part of the country soldiers of the Karen National Union (KNU) reportedly captured and killed 10 Burmese immigration officials. The KNU claimed that its captives were killed in a firefight with the army. On June 23, near the town of Myawadi on the Thai border, a KNU landmine destroyed a bus, killing seven noncombatants, reportedly in retaliation for the bus company's refusal to pay

protection " taxes" to the KNU. The Government reported that on July 31 in Kayah State, elements of the Karenni National Progressive Party (KNPP), an insurgent group, killed 2 persons who in July helped to arrange the surrender of 100 KNPP members to the Government, and who were attempting to mediate further similar negotiations (see Sections 1.g. and 2.d.).

b. Disappearance

Throughout the country, as in previous years, private citizens and political activists continued to " disappear" for periods ranging from several hours to several weeks or more; some have never reappeared. DDSI officials usually apprehended individuals for questioning without the knowledge of their family members. In many, although not all cases, the DDSI released them soon afterward. Such action usually was intended to prevent free political expression or assembly. The army continued to seize by force large numbers of persons for portage or related duties, often without the knowledge of their family members. The whereabouts of those persons seized by army units to serve as porters, as well as of prisoners transferred for labor or portage duties, often remained unknown.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The Government routinely subjected detainees to harsh interrogation techniques designed to intimidate and disorient. The most common forms of mistreatment were sleep and food deprivation coupled with around-the-clock questioning under bright lights; some detainees also were kicked and beaten. Credible reports continued that prisoners were forced to squat or assume stressful, uncomfortable, or painful positions for lengthy periods.

There continued to be credible reports that security forces subjected ordinary citizens to harassment and physical abuse. The military forces routinely confiscated property, cash, and food, and used coercive and abusive recruitment methods to procure porters. Those forced into portage or other labor faced extremely difficult conditions and beatings and mistreatment that sometimes resulted in death (see Sections 1.a. and 6.c.). In contrast to previous years, there were no instances of security forces beating NLD members who were attempting to assemble for meetings.

There were frequent reports that army soldiers and other army personnel raped women who were members of ethnic minorities, especially in Shan, Karenni, and Karen states, where the majority of armed encounters between the army and insurgents took place (see Sections 1.g. and 5.).

Members of insurgent forces also reportedly raped civilians.

Prison conditions remained harsh and life threatening; however, they improved slightly in some prisons after the ICRC gained access to prisons in May. All prisoners usually were permitted to receive medicine as well as essential supplemental food brought by their families (if the families could afford to do so) during 15-minute visits permitted every 2 weeks, although there are occasional reports that guards demand bribes for that privilege.

The Government's Department of Prisons operates many facilities of several categories including several labor camps. Conditions for political prisoners reportedly remained much harsher at facilities far from major cities, including prison labor camps than at prisons in Rangoon and Mandalay. Throughout the year, the Government transferred many prisoners--including NLD members--from Insein prison to prisons and labor camps far from Rangoon. Most such prisoners suffered additional hardship in the form of reduced access to family support, food, medicine, and clothing. There were credible reports that at least a few political prisoners or detainees have long been denied adequate medical care. Some of these prisoners died as a result (see Section 1.a.). On July 1, NLD member-elect of Parliament Kyaw Min died of hepatitis contracted in prison. He had been detained from 1996 to 1998 without trial and released to his family prior to his death.

International monitoring of prisons began in May after the Government agreed to allow the ICRC unrestricted access to all prisoners in all prisons, detention centers, and labor camps. In response to ICRC recommendations, the Government provided some prisoners with an opportunity for exercise, better food, reading material, and improved medical care. Although the Government transferred many political prisoners from Rangoon's Insein Prison to other facilities before the ICRC's first

visit to Insein in May, the Government apparently subsequently ceased such practices. During the year the ICRC was able to visit more than 30,000 prisoners in at least 18 prisons including more than 1300 political prisoners. The Government allowed the ICRC to perform its traditional services such as delivering letters to and from prisoners.

d. Arbitrary Arrest, Detention, or Exile

There is no provision in the law for judicial determination of the legality of detention, and the SPDC routinely practiced arbitrary arrest and incommunicado detention. Prior to being charged, detainees rarely had access to legal counsel or their families and political detainees have no opportunity to obtain release on bail. Some political detainees are held incommunicado for long periods. Even after being charged, detainees rarely have benefit of counsel. Some political prisoners were not released after completing their sentence.

Authorities continued to detain some private citizens and political activists continued to "disappear" temporarily at the hands of security forces (see Section 1.b.).

The Government repeatedly detained and deported foreign journalists (see Section 2.a.).

Throughout the year, the Government continued its campaign of detention and intimidation to prevent the NLD from convening the parliament elected in 1990. Between July and September authorities arrested or detained hundreds of local NLD leaders and former student leaders throughout the country; authorities reportedly detained as many as 100 persons in Pegu and Mandalay between July and September (see Section 1.c.). Many of these detentions apparently were intended to prevent public demonstrations in connection with the anniversary of the August 1988 prodemocracy demonstrations (see Section 2.b.) or on the numerologically significant date of September 9 (9/9/99) on which some prodemocracy groups based in foreign countries had called for a nationwide general strike to commemorate the 1988 prodemocracy demonstrations.

At year's end, the Government continued to detain without charge 55 persons elected to parliament in 1990; most were NLD members and most had been detained since September 1998, just before the NLD organized the formation of the CRPP. During the year, the junta released about 150 members-elect of Parliament who were being detained without charge as of the end of 1998. However, there were credible reports that in many cases the junta released members-elect of Parliament only after they agreed to resign from the elected Parliament, to withdraw their proxies to CRPP members, or otherwise to restrict their political activities (see Section 3).

In August in the town of Mergui in Tenasserim Division, authorities arrested and detained at least 17 high school students who were protesting rising formal and informal school fees, the continued closure of the universities, and the Government's continued prohibition of independent student associations (see Sections 1.e., 2.b. and 5). In December authorities arrested and detained high school students in Mergui for planning a protest, and students of closed postsecondary institutions living in Mandalay and in the town of Pakokku in Magwe Division for planning unauthorized public meetings or distributing prodemocracy literature (see Sections 2.a. and 2.b.).

The Government did not use forced exile. However, during the year, Aung San Suu Kyi was threatened with deportation or in the state-controlled media.

Since 1988, when the SPDC refused to recognize the results of the elections and pressured successful candidates to resign, some candidates, as well as thousands of political activists, went into foreign exile rather than face threats.

e. Denial of Fair Public Trial

The judiciary is not independent of the military junta. The junta appoints justices to the supreme court who, in turn, appoint lower court judges with the approval of the junta; it has done so since 1988. These courts adjudicate cases under decrees promulgated by the junta that effectively have the force of law. Pervasive corruption further serves to undermine the impartiality of the justice system.

The court system, as inherited from the United Kingdom and subsequently restructured, comprises courts at the township, district, state, and national levels.

Throughout the year, the Government continued to rule by decree and was not bound by any constitutional provisions providing for fair public trials or any other rights. Although remnants of the British-era legal system were formally in place, the court system and its operation remained seriously flawed, particularly in the handling of political cases. Unprofessional behavior by some court officials, the misuse of overly broad laws--including the Emergency Provisions Act of 1950, the Unlawful Associations Act, the Habitual Offenders Act, and the Law on Safeguarding the State from the Danger of Destructionists--and the manipulation of the courts for political ends continued to deprive citizens of the right to a fair trial and the rule of law.

Some basic due process rights, including the right to a public trial and to be represented by a defense attorney, generally were respected, except in political cases that the Government deemed especially sensitive. Defense attorneys are permitted to call and cross-examine witnesses, but their primary purpose is to bargain with the judge to obtain the shortest possible sentence for their clients. Most court proceedings are open to the public. However, in political cases, trials are not open to the public. Political detainees often are given harsher sentences if they mount a defense in court. In political cases, defense counsel appears to serve no purpose other than to provide moral support, since reliable reports indicate that senior military authorities dictate verdicts. Defense attorneys often are reluctant to take political cases.

Two foreign prodemocracy activists were sentenced to long prison terms for actions that elsewhere would be deemed innocuous. After two arrests in 1997 and 1998 that included serving 90 days of a 5-year prison sentence for illegal entry, James Mawdsley was again arrested in August. He was convicted and sentenced to a total of 17 years in prison. In September Rachel Goldwyn was arrested after chaining herself to a lamppost in downtown Rangoon and singing a prodemocracy song. She was convicted of sedition and sentenced to 7 years' imprisonment, but was released on appeal and left the country in November.

In October the Supreme Court dismissed suits brought by members of the NLD's central executive committee against SPDC Secretary One Lt. Gen. Khin Nyunt, the chief of military intelligence. The suits alleged that the military intelligence apparatus intentionally damaged private individuals in connection with the detention of NLD members elected to parliament in 1990. They also filed suit against other senior government officials for libel, fraud, and intimidation in connection with the organization of petitions of "no confidence" in NLD members-elect of Parliament (see Sections 1.d. and 3). Although the hearing was closed to the public, the Supreme Court reportedly ruled that General Khin Nyunt could not be sued for official actions without the permission of his superior, Senior General Than Shwe, and that the "no confidence" petitions were valid.

There were unconfirmed estimates that the Government holds over 1,300 political prisoners. Although the law provides for the commutation of sentences for good behavior, political prisoners often are not granted this benefit. Moreover, some political prisoners remained in custody despite having completed their sentences. However, in January and February the Government released two prominent political prisoners, Ohn Myint and Dr. Ma Thida, on humanitarian grounds prior to the completion of their sentences.

Some of the persons arrested and detained in July through September for prodemocracy activities were tried and sentenced to prison terms. For example, NLD youth member Tey Za from Myinma in Sagaing Division, who was arrested for posting a sign that his shop would close on September 9, was tried and sentenced later in the same month to 2 years in prison on a charge of instigating public panic. In Mandalay, a family of four was arrested and its members were sentenced to harsh prison terms for wearing yellow, a color associated with the NLD, on September 9 (see Sections 1.d. and 2.a.).

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The military Government continued to interfere extensively and arbitrarily in the lives of citizens. Through its extensive intelligence network and administrative procedures, the Government systematically monitored the travel of all citizens and closely monitored the activities of many citizens, particularly those known to be active politically. The law requires that any

person who spends the night at a place other than his registered domicile inform the police in advance, and that any household that hosts a person not domiciled there maintain and submit to the police a guest list. Police routinely entered and searched homes during night hours without warrants, ostensibly to enforce compliance with this requirement. Security personnel also commonly searched private premises and other property without warrants in other contexts.

Government employees generally are required to obtain advance permission before meeting with foreigners. Military intelligence continued frequently to monitor the movements of foreigners and to question citizens about conversations with foreigners.

Government employees are prohibited from joining or supporting political parties. The Government continued to use coercion and intimidation to induce many persons including nearly all public sector employees not only to join the Union Solidarity and Development Association (USDA), the Government's mass mobilization organization, but also repeatedly to attend mass meetings called to criticize the NLD and NLD members-elect of Parliament (see Sections 1.d., 2.b., and 3).

Government officials including senior officials continued repeatedly to make statements in the state-monopolized domestic media warning parents of students that authorities could hold them responsible for any political offenses that their children might commit.

In July 1998, the Attorney General banned women from marrying foreigners (see Sections 2.d., 5, and 6.f.). However, this ban is not enforced.

During late 1998 and early 1999, the Government refused to allow Aung San Suu Kyi's late husband Michael Aris, then terminally ill, to travel from Britain to visit his wife in Rangoon. The Government stated that if Aung San Suu Kyi wanted to see her British husband, she could leave the country to visit him in the United Kingdom. The Government announced that it would allow the prodemocracy leader to reenter the country only if they judged her visit to be non-political. At about the same time, state-owned media and billboards and government-organized mass rallies called for Aung San Suu Kyi to be deported (see Section 1.d.).

Army units routinely forced citizens, including women and children, to provide a wide range of support services without compensation and to work as military porters under harsh conditions (see Sections 1.a., 1.b., 1.g., and 6.c.). The army reportedly includes child soldiers as young as 14 years old. Child soldiers are assigned support duties.

Weak private property rights regarding land ownership continued to facilitate involuntary relocations of persons by the State. The law does not permit private ownership of land; it recognizes only different categories of land use rights, many of which are not freely transferable. Postcolonial land laws have revived the precolonial tradition that the State owns all land and that private rights to it are contingent upon use that the State deems productive.

To make way for commercial or public construction and in some cases for reasons of internal security and political control, the SPDC continued to relocate citizens out of cities to new towns; however, this occurred on a much smaller scale than during the early 1990's. Persons relocated to "new towns" continued to suffer from greatly reduced infrastructure support and living standards, and residents targeted for displacement continued to be given no option but to move, usually on short notice.

In rural areas the military Government also continued its widespread and frequent practice of forcibly relocating ethnic minority villages. This practice was particularly widespread and egregious in the Shan, Kayah, and Karen States and in areas of Mon State and Pegu Division as part of the armed forces campaign against insurgents. In these areas, thousands of villagers were displaced and herded into smaller settlements in strategic areas (see Section 1.g.). These forced relocations often have been accompanied by intensified demands for forced labor to build infrastructure for both villagers and army units to guard them in the areas to which they were relocated, and often have generated large outflows of refugees to neighboring countries or to parts of the country not controlled by the Government. In areas that it has forced ethnic minorities to leave,

the junta repeatedly has organized the settlement of Burmans. In some areas army units forced or attempted to force ethnic Karen to relocate to areas controlled by the Democratic Karen Buddhist Army (DKBA), an armed ethnic group allied with the Government (see Section 5).

During the year, the Government reportedly also forcibly relocated several largely Islamic villages in Arakan State and resettled the area with Buddhist Burmans whom it compelled to move out of Dagon Township in Rangoon Division (see Sections 1.g. and 5).

In a number of urban areas, residents were compelled to cede use of land for road widening and a host of other projects approved without any public consultation or endorsement. Other long-term city residents were required to cede use of land for commercial redevelopment and were compensated at only a fraction of the value of their lost homes.

In rural areas, military units and personnel routinely confiscated livestock, fuel, food supplies, alcoholic drinks, or money. This abuse has become widespread and systematic since 1997, when the junta, intent upon continuing its military buildup despite mounting financial problems, ordered its regional commanders insofar as possible to supply their logistical needs locally rather than rely on the central authorities, and reorganized the junta to give greater authority to regional commanders relative to the central Government. As a result, regional commanders have increased their use of forced contributions of food, labor and building materials throughout the country.

Security personnel continued to screen private correspondence and telephone calls.

Government authorities continued generally to prevent citizens from subscribing directly to foreign publications or satellite television (see Section 2.a.). The Government continued to license or ration electronic communication devices. A decree promulgated by the junta in 1996 has made possession of an unregistered telephone, facsimile machine, or computer modem punishable by imprisonment. (see Section 2.a.).

Both army and insurgent units used forced conscription.

Use of Excessive Force and Violations of Humanitarian Law in Internal Conflicts

Continuously since independence in 1948, the army has battled diverse ethnic insurgencies. These ethnic minority insurgent groups have sought to gain greater autonomy, or in some cases, independence from the ethnic Burman-dominated State. Since 1989 about 15 such groups have concluded and maintained cease-fire agreements with the Government; under these agreements, such groups generally have retained their own armed forces and either rule or perform some governmental functions within specified territories inhabited chiefly by members of their ethnic groups. However, the Karen National Union (KNU) has continued to conduct insurgent operations in areas with significant Karen populations in the eastern and southern regions of the country, including not only Karen State but also Mon State, Tenasserim Division, and Pegu Division. In Kayah State, the Karenni National Progressive Party (KNPP) has resumed fighting against the Government since the breakdown of a cease-fire negotiated in 1995. In central and southern Shan State, military forces continued to engage the Shan State Army (SSA), a remnant of Khung Sa's narcotics-linked Mong Tai army. The government continued a campaign of forced relocation of villagers. There are credible reports that the army committed retaliatory killings, rapes and other atrocities against civilians. Numerous other minor ethnically based insurgent groups including the Chin National Front (CNF), the Naga National council, the Rohingya solidarity organization (RSO), and the Arakan National Organization (ANO) continue to oppose the central government with varying levels of insurgent activity.

In combat zones or in areas controlled by ethnic minorities as part of the government's cease fire arrangements, some insurgents subjected civilians to forced labor.

Some antigovernment insurgent groups also committed serious abuses. Some KNU units committed extrajudicial killings of civilians, in one case by blowing up a passenger bus with a landmine (see Section 1.a.). KNPP elements reportedly killed two persons who had arranged the surrender of KNPP fighters to the Government and were attempting to do so again (see

Section 1.a.). SSA insurgents reportedly committed retaliatory killings, rapes, and other atrocities against civilians. There were credible reports that some insurgents used women and children as porters. At least one Karen insurgent group calling itself God's Army, which has split from the KNU and operated from a base inside the country near the border with Thailand, was led by child soldiers (see Section 5). In September five young armed Karen seized the Burmese Embassy in Thailand and held persons of several nationalities hostage. The hostage takers later were granted refuge at God's Army camp in Burma.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The law authorizes the Government to restrict freedom of speech and of the press and in practice the junta continued to restrict these freedoms severely and systematically. The Government continued to arrest, detain, convict or imprison many persons for nonviolently expressing or attempting to express political opinions critical of the junta or of military rule, or for distributing or possessing publications in which such opinions were expressed (see Sections 1.c., 1.d., and 1.e.). In addition, security services continued to monitor, harass, and intimidate persons believed to hold such political opinions. Many more persons refrained from speaking out due to fear of arrest, interrogation, and other forms of intimidation.

Legal restrictions on freedom of speech, already severe since the early 1960s, have intensified since 1996, when the junta promulgated a decree prohibiting speeches or statements that "undermine national stability" as well as the drafting of alternative constitutions. In all regions of the country that it controlled, the military Government continued to use force to prohibit virtually all public speech critical of it by all persons, including persons elected to parliament in 1990 and by leaders of political parties (see Sections 1.d., 1.e., 2.b., and 3). The Government has pursued this policy consistently since 1990, with the one exception of permitting weekly speeches by NLD leaders in front of Aung San Suu Kyi's residence in Rangoon from late 1995 until December 1996.

During the year, novelist Maung Tha Ya fled the country and publicly stated that he believed that 20 prominent writers remained in prison in the country, including novelist and journalist San San Nweh, who has been imprisoned for a 10-year-term since 1994 for passing information about human rights violations to international reporters and United Nations observers. Some of these writers, including San San Nweh, were reportedly in poor health, and government censorship boards continued not to approve publication or distribution of many works written by them. An international nongovernmental organization (NGO) that promotes media freedom reported in December that 13 journalists were in prison. The government did allow former political prisoner Dr. Ma Thida to publish a novel following her release from prison.

On August 19, the junta announced that security forces recently seized thousands of "instigative leaflets" and many cassettes and videotapes that called for participation in September 9 activities to commemorate the prodemocracy demonstrations of August 1988 (see Section 1.d.). On August 27, in Rangoon Division's Thaketa Township, security forces reportedly arrested six high school students for distributing such leaflets on the street.

All forms of domestic public media were officially controlled or censored. This strict control in turn encouraged self-censorship on the part of writers and publishers.

The State continued to own and the Government continued to control all daily newspapers, domestic radio and television broadcasting facilities. These official media remained propaganda organs of the junta and normally did not report opposing views except to criticize them. While some state-owned newspapers continued to include many edited international wire service reports on foreign news, domestic news hewed strictly to and reinforced government policy.

All privately owned publications remained subject in principle to prepublication censorship by state censorship boards. Due in part to the time required to obtain the approval of the censors, private news periodicals generally were published monthly or less often. However, since 1996 the Government, in order to help state employees supplement their increasingly

inadequate salaries, has given transferable waivers of prepublication censorship for weekly periodicals to state employee associations; although private weekly tabloids have proliferated, they remain subject in principle to censorship and generally have not reported domestic political news.

Imported publications remained subject in principle to predistribution censorship by state censorship boards, and possession of publications not approved by the state censorship boards remained a serious offense that continued in cases involving prodemocracy literature to be punished by imprisonment (see Sections 1.d. and 1.e.). The Government also restricted the legal importation of foreign news periodicals, as of all other goods, by licensing. Citizens were generally unable to subscribe directly to foreign publications, but a limited selection of foreign newspapers could be purchased in a few hotels and stores in Rangoon (see Section 1.f.). Censors frequently banned issues or deleted articles deemed unwelcome by the Government. However, some street vendors sold illegally imported copies of international newsmagazines and daily newspapers.

Since 1997 the Government has issued few visas to foreign journalists and has held fewer than a handful of press conferences on political subjects. Several journalists who entered the country as tourists were detained and deported by the Government.

Due to widespread poverty, limited literacy, and poor infrastructure, radio remained the most important medium of mass communication. News periodicals rarely circulated outside urban areas, and most villages lacked access to electrical power, except from generators or batteries. The junta continued to monopolize and to control tightly the content of all domestic radio broadcasting. Foreign radio broadcasts, such as those of the British Broadcasting Corporation, Voice of America, Radio Free Asia, and the Norway-based Democratic Voice of Burma, remained the principal sources of uncensored information.

The Government continued to monopolize and to control tightly all domestic television broadcasting, offering both a government channel and an armed forces channel. The Government continued to restrict the reception of foreign satellite television broadcasts, although restrictions are not enforced strictly in many cases (see Section 1.f.). Operation of an unlicensed satellite television receiver is a crime punishable by imprisonment for up to 3 years. Persons active in prodemocracy activities remained generally unable to obtain licenses. However, many citizens not engaged in prodemocracy activities ignored the licensing regulation without penalty. The Television and Video Law makes it a criminal offense to publish, distribute or possess a videotape not approved by a state censorship board, and in 1996 the junta promulgated an amendment to that law that stiffened the penalties for distributing uncensored videos.

The junta continued severely and systematically to restrict access to electronic media. Under a decree promulgated by the junta in 1996, all computers, software, and associated telecommunications devices are subject to government registration, and possession of unregistered equipment is punishable by imprisonment (see Section 1.f.).

The Ministry of Defense continued to operate the country's only known Internet server, and during much of the year began to offer Internet services selectively to a small number of customers. However, in December military intelligence officials closed the private domestic e-mail services, seized some of their equipment, closed two private computer training schools, and detained and interrogated five instructors at those schools. Also in December, military intelligence reportedly closed the Defense Ministry's domestic Internet subscription service, arrested Col. Khin Maung Lwin, who managed the Defense Ministry's Internet operations, and charged him with violating the Official Secrets Act. The country's first cybercafe opened in Rangoon during the year, but did not offer patrons direct access to the Internet.

The Government continued to restrict academic freedom severely. University teachers and professors remained subject to the same restrictions on freedom of speech, political activities, and publications as other government employees. The Ministry of Higher Education continued routinely to warn them against criticism of the Government; to instruct them not to discuss politics while at work; to prohibit them from joining or supporting political parties or engaging in political activity; and to require them to obtain advance ministerial approval for meetings with foreigners. Like all government employees, professors and teachers continued to be coerced into joining and taking part in the activities of the USDA (see Sections 1.d., 1.f., 2.b., and 3). Teachers at all levels continued to be held responsible for preventing students from engaging in any unauthorized demonstrations or political activity.

Most institutions of higher education have remained largely closed again since 1996, when the junta closed the universities and even primary and secondary schools following widespread student demonstrations. Primary and secondary schools reopened in August 1997. Graduate students also were allowed to continue their studies. In 1998 several universities were opened for abbreviated refresher courses and examinations. Dissatisfaction with the limited time for education prompted several student demonstrations. Authorities arrested student protest leaders and sentenced them to lengthy prison terms. After holding exams, the junta again closed the universities. The junta reopened the medical college in 1998 and the agricultural college in 1999. In December it reopened some engineering and technical institutes, but these did not remain open.

Although the Government increasingly has promoted higher education through correspondence courses, in practice domestic access to general higher education involving substantial classroom instruction remained conditional upon enrollment in the armed forces. The armed forces academy and medical and technical schools remained open.

b. Freedom of Peaceful Assembly and Association

The Government continued to restrict freedom of assembly severely. Its prohibition of unauthorized outdoor assemblies of more than five persons remained in effect, although it was enforced unevenly. The 10 existing legal political parties remained required to request formal permission from the Government to hold internal meetings of their members, although some members still met without official permission.

The military junta intensified its systematic decade-long use of coercion and intimidation to prevent the parliament elected in 1990 from convening (see Sections 1.c., 1.d., 1.e. and 3.)

From July through September, government authorities in various parts of the country used force to prevent prodemocracy demonstrations or punish participants in them. Authorities detained or arrested and in many cases convicted and imprisoned persons suspected of planning such demonstrations (see Sections 1.d. and 1.e.). On August 8 and September 9, security forces, including army soldiers and riot police deployed at key intersections in Rangoon to prevent any antigovernment demonstrations. On August 12, in Mergui, security forces reportedly arrested about 30 high school students who participated in a demonstration for a reduction of school fees, the right to form a student union, and other educational and political reforms (see Sections 1.d. and 5).

The Government continued to allow the NLD to celebrate certain key party events with public gatherings at Aung San Suu Kyi's residence or the national NLD party headquarters in Rangoon. However, on some of these occasions, the Government restricted the size of the gatherings or the types of individuals who were allowed to attend. In August the security forces prevented diplomats and journalists from attending an NLD commemoration of the first anniversary of the formation of the CRPP. Outside the capital, authorities in most areas routinely restricted NLD members' freedom of assembly more severely, and required members of parliament-elect to register at police stations twice per day. In contrast to previous years, there were no incidents during which security forces publicly beat NLD members as they attempted to peaceably assemble or attend meetings.

In 1998 the Government organized large anti-NLD rallies in every state and division (see Section 3). Many participants were required to attend. These rallies ceased in 1999 and were replaced by trumped-up recall petitions for elected members of parliament who refused to resign in the face of government pressure.

The Government sometimes interfered with religious groups' assemblies or other outdoor gatherings during the year (see Section 2.c.).

The Government intensified its already severe restrictions on freedom of association, particularly against members of the main opposition political party, the NLD.

Aside from officially sanctioned organizations like the USDA, the right of association existed only for organizations, including trade associations and professional bodies, permitted by law and duly registered with the Government, such as the Forest Reserve Environment Development and Conservation Association. Few secular nonprofit organizations continued to exist, and even those were subject to direct government intervention and took special care to act in accordance with government policy. This group included nominally apolitical organizations such as the Myanmar Red Cross and the Myanmar Medical Association. Only 10 political parties remained legally in existence, and most were moribund. Military authorities generally required civilian employees both of the Government to belong to the USDA.

Government authorities continued to harass NLD members for petty offenses or for no offenses at all. The authorities reportedly cut off the supply of electrical power to the home of an NLD township chairman. On August 29, security forces reportedly detained the wife of an NLD member of the CRPP for having provided food at an NLD commemoration of a national holiday on July 19. Authorities also continued to arrest, convict, and imprison NLD activists for political crimes (see Sections 1.c., 1.d., and 1.e.).

In addition, during the year the junta continued its systematic nationwide campaign to destroy the NLD without formally banning it. This campaign was intensified after September 1998, when the NLD's national leadership organized the CRPP. Throughout the year, government media published hundreds of reports from localities across the country that NLD members had "voluntarily resigned" from the party in groups ranging in size from fewer than 10 to more than 1,000 persons. By year's end, the reported number of NLD members who "voluntarily resigned" numbered in the tens of thousands. Government authorities announced in state media that those who had resigned from the NLD included 27 persons elected to parliament in 1990 (see Section 3).

Many of these resignations from the NLD generally were coerced according to the people concerned. In some townships, authorities subjected local NLD officers to particularly intense pressure to resign from the party and rendered local party organizations officially defunct due to a lack of recognized officers. In some localities, NLD members and in particular local NLD officials who refused to resign from the party were arrested or imprisoned or recall motions were mounted against them. In many townships, this campaign deprived people of any registered organization through which they could associate for political purposes without criminal liability. The NLD credibly alleged that the government also used its control of some members of the Buddhist clergy to induce NLD members to resign and to dissolve local party organizations.

c. Freedom of Religion

Most adherents of all religions duly registered with the authorities generally enjoyed freedom to worship as they chose; however, the Government imposed some restrictions on certain religious minorities. In addition, the government systematically restricted efforts by Buddhist clergy to promote human rights and political freedom, and coercively promoted Buddhism over other religions in some ethnic minority areas.

The most recent Constitution, promulgated in 1974, permitted both legislative and administrative restrictions on religious freedom, stating that "the national races shall enjoy the freedom to profess their religion ... provided that the enjoyment of any such freedom does not offend the laws or the public interest." The Government required religious organizations, like all organizations, to register with it. Although there is a government directive exempting "genuine" religious organizations from registration, in practice only registered organizations can buy or sell property or open bank accounts, which induces most religious organizations to register. Religious organizations register with the Ministry of Home Affairs with the endorsement of the Ministry for Religious Affairs. The State also provides some utilities, such as electricity, at preferential rates to recognized organizations.

The Government routinely monitored religious meetings, like all assemblies; and it subjected religious publications, like all publications, to censorship and control.

There is no official state religion; however, the Government continued both to show preference for Theravada Buddhism, the majority religion. State-controlled news media continued frequently to depict or describe junta members paying homage to Buddhist monks, making donations at pagodas throughout the country, officiating at ceremonies to open, improve, restore or maintain pagodas, and organizing ostensibly voluntary "people's donations" of money, food, and uncompensated labor to build or refurbish Buddhist religious shrines throughout the country. State-owned newspapers routinely featured, as front-page banner slogans, quotations from the Buddhist scriptures. Buddhist doctrine remained part of the state-mandated curriculum in all elementary schools; however, individual children could opt out of instruction in Buddhism. The Government continued to fund two State Sangha Universities in Rangoon and Mandalay to train Buddhist clergy.

Religious groups of all faiths were able to establish and maintain links with coreligionists in other countries and travel abroad for religious purposes; however, the Government reportedly monitored these activities. Foreign religious representatives usually were allowed visas only for short stays but in some cases were permitted to preach to congregations.

In general, the Government has not permitted permanent foreign missionary establishments since the mid-1960's, when it expelled nearly all foreign missionaries and nationalized all private schools and hospitals, which were extensive and were affiliated mostly with Christian religious organizations. However, some elderly nuns and priests working in the country since before independence in 1948 have been allowed to continue their work. By contrast, the junta partly funded the construction of the International Theravada Buddhist Missionary University in Rangoon, which opened in December 1998; its stated purpose is "to share Myanmar's knowledge of Buddhism with the people of the world," and the main language of instruction is English.

There continued to be credible reports from various regions of the country that government officials and security forces compelled persons, especially in rural areas, to contribute money, food, or uncompensated labor to state-sponsored projects to build, renovate, or maintain Buddhist religious shrines or monuments. The Government calls these contributions "voluntary donations" and imposes them on both Buddhists and non-Buddhists (see Section 6.c.).

The Government prohibits any organizations of Buddhist clergy other than nine state-recognized monastic orders, which submit to the authority of a state-sponsored State Clergy Coordination Committee ("sangha maha nayaka committee" -- SMNC) elected indirectly by monks. The junta continued to subject the Buddhist clergy ("sangha") to special restrictions on freedom of expression and association. Since 1995 the junta has prohibited the ordination as clergy of any member of a political party.

In July the senior abbots of five monasteries around Mandalay reportedly protested a new order by the regional military command that forbade Buddhist clergy to leave their township of residence without first surrendering their identity cards and obtaining written permission from local authorities; persons other than Buddhist clergy generally were not subject to such severe restrictions on movement (see Section 2.d.).

There is no reliable estimate of the number of Buddhist clergy in prisons or labor camps at year's end. Buddhist monks reportedly have died in prisons or labor camps run by the Government's Department of Prisons.

Christian and Islamic groups continued to have difficulties in obtaining permission to build new churches and mosques, particularly on prominent sites.

It was credibly reported that in Karen State's Pa'an Township, army units repeatedly conscripted as porters young men leaving worship services at some Christian churches, causing young men to avoid church attendance.

Religious publications, like secular ones, remained subject to censorship. Translations of the Bible and the Koran into indigenous languages could not be imported or printed legally, although this ban is not enforced in many areas. In February and May in Tamu Township in Sagaing Division, military authorities reportedly confiscated 1,600 copies of the Bible printed outside the country in the Chin, Kachin, and Karen languages; these Bibles reportedly remained confiscated at year's end.

Since 1990 government authorities and security forces have promoted Buddhism over Christianity among the Chin ethnic minority of the western part of the country. Since 1990 government authorities and security forces, with assistance from monks of the Hill Regions Buddhist Missions, coercively have sought to induce Chins to convert to Theravada Buddhism and to prevent Christian Chins from proselytizing Chins who practice traditional indigenous religions. This campaign, reportedly accompanied by other efforts to "Burmanize" the Chin, has involved a large increase in military units stationed in Chin State and other predominately Chin areas, state-sponsored immigration of Buddhist Burman monks from other regions, and construction of Buddhist monasteries and shrines in Chin communities with few or no Buddhists, often by means of forced "donations" of money or labor. Government authorities repeatedly prohibited Christian clergy from proselytizing. Soldiers beat Christian clergy who refused to sign statements promising to stop preaching. There reportedly have been instances of forced conversion. Since the early 1990's, security forces have torn down or forced villagers to tear down crosses that had been erected outside Chin Christian villages; these crosses often have been replaced with pagodas, sometimes built with forced labor. In parts of Chin State, authorities reportedly have not authorized the construction of any new churches since 1997. After parts of the Aungdawmu Buddhist pagoda in Chin State's Falam Township collapsed in July, Buddhist monks and army authorities reportedly forced Chin villagers, most of whom were not Buddhists, to labor for months without pay to repair it.

During the year, there were several credible reports of harassment of Christian churches and pastors in Chin State and in the Chin community elsewhere in connection with the celebration of the 100th year of Christianity among the Chin. On January 5, after a centennial celebration held in the town of Than Tlang on January 1-3, citizens of the town erected a cross atop Vuichip Hill outside the town. The township military commander reportedly ordered the town's residents to remove the cross, but they refused to do so, whereupon soldiers reportedly removed the cross and arrested and interrogated six Chin Baptist pastors. In response the inhabitants of Than Tlang observed a general strike and day of prayer on January 6. The township military command then reportedly summoned 20 Christian clergy and church leaders for interrogation. On January 9, Christian churches around Hakka, the capital of Chin State, joined Than Tlang's protest by holding special prayer services. The regional military command then reportedly ordered the postponement until April of a centennial celebration to be held in Hakka, and informed Chin Christian leaders that erection of the crosses on hilltops must be approved by authorities in Rangoon. Authorities allowed the centennial celebration in Hakka to take place in April, but reportedly limited participation to 4,500 persons and reportedly refused to allow former Baptist missionaries and Baptists from other countries to participate. Early in the year, military authorities in Hakka reportedly ordered that the construction of new churches be halted, thereby preventing the completion before the April centennial celebration of a hall named in honor of the first Baptist missionary among the Chin.

For several years, there have been reports that the Government sought to induce members of the Naga ethnic group in Sagaing Division to convert from Christianity to Buddhism by means similar to those it used to convert members of the Chin to Buddhism. During the year, the first mass exodus of Naga religious refugees from the country occurred. In August more than 1,000 Christians of the Naga ethnic group, from 8 different villages, reportedly fled the country to India. These Naga reportedly claimed that the army and Buddhist monks tried to force them to convert to Buddhism and had forced them to close churches in their villages, then desecrated the churches.

Religious affiliation sometimes is indicated on government-issued identification cards that citizens and permanent residents of the country are required to carry at all times. There appear to be no consistent criteria governing whether a person's religion is indicated on his or her identification card. Nationals are also required to indicate their religions on some official application forms, e.g., for passports.

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

The Government restricts freedom of movement. Although citizens have the legal right to live anywhere in the country, both urban and rural residents were subject to arbitrary relocation (see Sections 1.f. and 1.g.). Except for limitations in areas of insurgent activity, most citizens could travel freely within the country but were required to notify local government of their whereabouts (see Sections 1.f.).

Since ostensibly freeing NLD general secretary Aung San Suu Kyi in 1995 from a 6-year-long house arrest, the junta has continued to restrict severely her freedom of movement within the country, seldom allowing her to travel outside the capital and sometimes preventing her from leaving her home in Rangoon. The Government prevented her from leaving her residence on September 9 and September 16 (see Section 2.a.). Since 1996 security forces also have restricted public movement along the street in front of her residence.

Those residents unable to meet the restrictive provisions of the citizenship law, such as ethnic Chinese, Arakanese, Muslims, and others must obtain prior permission to travel. Some Arakanese Muslims must obtain permission from the security forces to travel to the next town. The Government also prohibits foreign diplomats and foreign employees of U.N. agencies based in Rangoon from travelling outside the capital without advance permission, which sometimes was not granted or rescinded after travel had begun.

The Government carefully scrutinized prospective travel abroad. This facilitated rampant corruption as many applicants were forced to pay large bribes to obtain passports to which they otherwise were entitled. The official board that reviews passport applications denied passports in some cases apparently on political grounds. All college graduates who obtained a passport (except for certain government employees) were required to pay a special education clearance fee to reimburse the Government for the cost of their education. Citizens who had emigrated legally generally were allowed to return to visit relatives, and some who had lived abroad illegally and acquired foreign citizenship were able to return to visit.

Since the mid-1990's, the Government increasingly has restricted the issuance of passports to female citizens (see Sections 1.f., 5 and 6.f.). However, these restrictions sometimes were evaded by payments of large bribes.

In March while denying a visa to her terminally ill British husband, the Government indicated that they would issue Aung San Suu Kyi a passport to enable her to visit him in the United Kingdom, but stated that it would allow her to reenter the country only if her foreign travel were not of a political nature. In the first quarter of the year, state media throughout the country featured slogans urging that Aung San Suu Kyi be deported (see Sections 1.f. and 5).

Restrictions on foreign travelers have been eased as part of an effort to promote tourism. Burmese embassies issued tourist visas, valid for 1 month, within 24 hours of application. However, select categories of applicants, such as foreign human rights advocates, journalists, and political figures continued to be denied entry visas unless traveling under the aegis of a sponsor acceptable to the Government and for purposes approved by the Government. In September the Government temporarily stopped issuing visas to independent travelers in order to prevent foreign activists from entering the country. Many travelers were questioned at length and asked to sign oaths indicating that they were not journalists or activists before their visas were issued. The Government detained and deported several journalists (see Section 2.a.). One foreign citizen who entered the country after previously being expelled for antigovernment activity was sentenced to 5 years in prison in 1998. He was released after 90 days and deported. After violating the terms of his deportation by returning to Burma in September, he was convicted of immigration and publishing violations and sentenced to seventeen years in prison. Although some areas of the country remained closed to foreigners for security reasons, the Government permitted travel to most other destinations. Rangoon-based diplomats must apply 10 days in advance for travel outside the capital.

From early October until late November the Government closed the border with Thailand; it announced that the seizure of its embassy in Bangkok, Thailand, by Karen insurgents in early October impelled it to take this action (see Section 1.g.).

Hundreds of thousands of citizens continued to reside outside the country, mostly in Thailand, India, and Bangladesh. About 150,000 lived in refugee camps. During the first months of the year, the at least 112,000 Karen, Mon, and Karenni residing in refugee camps in Thailand, and the tens of thousands of Shan refugees whom the Thai Government did not confine to such camps, were joined during the year by thousands of new arrivals who fled army attacks against insurgencies in the Karen, Karenni, and Shan ethnic areas, which were accompanied by numerous, serious, widespread abuses of the human rights of noncombatants (see Sections 1.a., 1.c., 1.f., 1.g., and 6.c.).

At year's end, there were still 21,000 Rohingya Muslims remaining in refugee camps in Bangladesh. The UN High Commissioner for Refugees (UNHCR) repatriation program, which since 1992 had succeeded in returning approximately 238,000 refugees to Burma and originally had been scheduled to end on August 15, 1997, halted prematurely when the Rohingyas as a group rejected repatriation and demanded resettlement in Bangladesh. While the Government agreed to resume repatriation of those remaining, this repatriation is proceeding extremely slowly.

The Rohingyas refused to return because they feared human rights abuses, including religious persecution and other government restrictions. The UNHCR reported that the Government cooperated in investigating isolated incidents of renewed abuse of repatriated citizens. However, returnees face severe and increasing restrictions imposed by the Government on their ability to travel and to engage in economic activity (see Sections 2.c. and 5).

The Government does not allow refugees or displaced persons from abroad to resettle or seek safe haven, and has no policy to grant asylum. There were no reports that persons formally sought asylum in the country during the year. There also were no reports of the forced return of persons to a country where they feared persecution.

On October 1, a handful of armed antigovernment terrorists who took control of the Burmese embassy in Bangkok, Thailand, held hostage and threatened to kill foreign tourist visa applicants as well as embassy staff; the incident was resolved without loss of life (see Section 1.g.).

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

Despite the overwhelming desire that citizens demonstrated in the 1990 elections for a return to democracy, the regime continued to deny them the right to change their government.

Since 1962 active duty military officers have occupied most important positions throughout the Government, particularly at the policy making level, but also extending to local administration. Since the armed forces brutally crushed widespread and largely peaceful prodemocracy demonstrations in 1988, all state power has been held by a military junta. All members of the junta have been military officers on active duty, and the junta has placed military or recently retired military officers in most key senior level positions in all ministries. At year's end, only 11 of the 41 government ministers were civilians.

Following the NLD's victory in the 1990 elections, the SPDC thwarted voters by refusing to implement the election results. The Government disqualified, detained, or imprisoned many successful candidates, and many others fled the country (see Sections 1.d. and 1.e.).

Rather than accept the will of the citizenry as expressed in the 1990 election, the junta convened a national convention in 1993 to draw up principles for a new constitution. The junta hand-picked most delegates, and carefully stage-managed the proceedings; even limited opposition views were ignored. The junta tasked the convention with drafting a new constitution designed to provide a dominant role for the military services in the country's future political structure. In 1995 the NLD delegates withdrew from the convention pending agreement by the Government to discuss revising the convention's working procedures to permit debate and meaningful participation in formulation of a new constitution. Two days after its withdrawal, the NLD was expelled formally. The national convention continued its deliberations until it adjourned in March 1996. It has not reconvened. The provisions that it adopted were designed to ensure the large-scale involvement of the military services in all levels of government--including reserving 25 percent of seats in the Parliament for appointed members of the military services, and reserving key government posts for military personnel as well. In addition it adopted provisions that prohibited, among other things, anyone "under acknowledgment of allegiance" to a foreigner or who has received any type of assistance from a foreign source, from participating in the Government. These provisions apparently were designed to exclude Aung San Suu Kyi, who was married to a British citizen.

During the year, the SPDC intensified its systematic use of coercion and intimidation to deny citizens the right to change their government. In August 1998, the NLD leadership organized a small Committee of Representatives of the People's Parliament that had written delegations of authority from a majority of the surviving representatives elected in 1990 to act on behalf of

the Parliament, in view of the junta's continued use of force to prevent the whole Parliament from convening. The junta has responded by directing a sustained, systematic campaign to destroy the NLD without formally banning it; authorities pressured many thousands of NLD members and local officials to resign and closed party offices throughout the country. Military intelligence officials also have detained without charge 55 other elected representatives, mostly NLD members, since September 1998 (see Section 1.d.).

In addition, the junta continued its systematic nationwide campaign in which local authorities pressured constituents to sign statements of no confidence in NLD representatives elected from their districts in 1990. During the year, state-owned media reported that a majority of eligible voters in at least 10 townships had signed petitions expressing no confidence in at least 27 NLD members-elect of Parliament. These petitions were presented to local Multiparty Democracy General Election Commissions in formal ceremonies staged at mass rallies widely publicized by state-owned media. Both the CRPP in public statements and the NLD in lawsuits it filed to protest these activities (see Section 1.e.) alleged credibly and in detail that signature of these petitions and participation in these mass rallies generally was obtained by systematic coercion and intimidation by government and USDA officials (see Section 1.e.).

In late October the national Multiparty Democracy General Election Commission reportedly announced that of 392 NLD members elected to parliament in 1990, only 92 remained both NLD members and members-elect of parliament; 105 had resigned their parliamentary status, the Commission had disqualified or revoked the candidacy of 139, 27 had resigned from the NLD, and 31 had died.

At year's end, the government claimed there were only 166 of the 485 elected members of Parliament. Given credible reports of forced resignations and opposition assertions that disqualifications are invalid, a more indicative statistic is that 432 persons elected to be members of parliament in 1990 remained alive and in the country at year's end.

Women and minorities were underrepresented in the Government and the top ranks of government services and excluded from military leadership. There were no female members of the SPDC, ministers, or supreme court judges.

Members of certain minority groups continued to be denied full citizenship and a role in government and politics(see Section 5).

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

The Government does not allow domestic human rights organizations to exist, and it remained generally hostile to outside scrutiny of its human rights record. Approximately 15 nonpolitical, humanitarian, international NGO's continued project work. A few others established a provisional presence while undertaking the protracted negotiations necessary to set up permanent operations in the country.

The Government continued to refuse to meet with representatives of the U.N. Human Rights Commission (UNHRC), which repeatedly has criticized the Government's junta rights record in annual resolutions, and continued to deny the UNHRC Special Rapporteur for Burma, Rajsoomer Lallah, entry into the country. In his report to the UNHRC, Lallah criticized the human rights violations committed against ethnic minorities as a result of the SPDC's policy of forcible relocations and continued recourse to forced labor. The Government allowed two visits of U.N. Special Envoy to Burma Alvaro de Soto in 1998 and 1999. However, the SPDC refused to engage on the substance of Mr. De Soto's mandate.

In recent years the Government has denied entry to foreigners, including staff of an International Labor Organization (ILO) Special Commission of Inquiry, who sought to investigate allegations of forced labor (see Section 6.c.).

The Government continued routinely, although less routinely than during 1998, to deny visas to foreign journalists and NGO staff whom it regarded as likely to criticize its human rights record publicly.

The Government's restriction of travel to and within the country by foreign journalists, NGO staff, UN agency staff, and diplomats, its monitoring of the movements of such foreigners, and its frequent interrogation of citizens about contacts with foreigners, its restrictions on the freedom of expression and association of citizens, and its practice of arresting citizens who passed information about government human rights abuses to foreigners, all impeded efforts to collect or investigate information about human rights abuses (see Sections 1.c., 1.d., 1.e., 2.a., 2.b., 2.c., and 6.a.). Reports of abuses, especially those committed in prisons or ethnic minority areas, often emerged months or years after the abuses allegedly were committed, and seldom could be verified with certainty.

Section 5 Discrimination Based on Race, Sex, Religion, Disability, Language, or Social Status

Trafficking in women for the purpose of forced prostitution is a serious problem (see Section 6.f.).

The military junta continued to rule by decree and was not bound by any constitutional provisions concerning discrimination.

Women

Domestic violence against women, including spousal abuse, appears to be relatively infrequent. Married couples often live in households with extended families, where social pressure tends to protect the wife from abuse. The Government sponsors social welfare training for women.

Prostitution became an increasingly overt problem during the period, particularly in some of Rangoon's "new towns," populated chiefly by poor families forcibly relocated from older areas of the capital (see Section 1.f.). The Government and at least one international nongovernmental organization operate schools and other rehabilitation programs for former prostitutes.

Trafficking in women for the purposes of prostitution is a serious problem (see Section 6.f.)

In general women traditionally have enjoyed a high social and economic status exercising most of the same basic rights as men. Consistent with traditional culture, women keep their names after marriage and often control family finances. While nationwide, there was little difference between the males and females in school attendance rates or educational attainment, in Muslim dominated areas, girls tended to stop schooling much earlier than boys. However, women remained underrepresented in most traditional male occupations, and women continued to be barred effectively from a few professions including the military officer corps. The burden of poverty, which is particularly widespread in rural areas, fell disproportionately on women. In recent years, the Government officially hampered women from marrying foreigners and restricted foreign travel by women but has not enforced these restrictions consistently (see Sections 1.f., 2.d., and 6.f.).

Women did not consistently receive equal pay for equal work. Women legally were entitled to receive up to 26 weeks of maternity benefits; however, in practice these accommodations often were not realized.

There were no independent women's rights organizations; the National Committee for Women's Affairs in the Ministry of Social Welfare is charged with safeguarding women's interests. The Myanmar Maternal and Child Welfare Association, a government-controlled agency, provided assistance to mothers. A professional society for businesswomen, the Myanmar Women Entrepreneurs' Association, formed in 1995, provided loans to new businesses, and made charitable donations.

During the year, the State acceded to the Convention on the Elimination of All Forms of Discrimination Against Women.

Children

The Government continued to neglect and restrict the education of children. The junta continued to allocate few and declining resources to fund public education. In response to inadequate public education, private institutions began emerging during the year despite an official monopoly on education. Government expenditures for all civilian education for 1997-98 were

equivalent to only 0.9 percent of recorded GDP during the year and have declined by more than 70 percent in real terms since 1990. According to government studies conducted with U.N. assistance, although education is compulsory, only 37 percent of children finished fourth grade in urban areas and only 22 percent did so in rural areas. Rates of school attendance and educational attainment decreased during the 1990s, due largely to increasing formal and informal school fees as the junta diverted expenditures from health and education to the armed forces. Teachers' salaries were far below subsistence wages. Increasingly, only relatively prosperous families could afford to send their children to school, even at the primary level. In some areas in the center of the country, where few families could afford unofficial payments to teachers, teachers generally no longer came to work and schools no longer functioned. Junta policies have accelerated a general educational decline (see Section 1.f.).

Children also suffered greatly from the junta's severe and worsening neglect of health care. Private health care facilities became increasingly the provider of choice for the relatively prosperous. The junta has cut government expenditures on public health care even more sharply than it cut spending for education. Government expenditures for civilian health care in 1997-98 were equivalent to only 0.3 percent of GDP. Government studies sponsored by U.N. agencies in 1997 found that on average 131 of 1,000 children died before reaching the age of 5 years, and that on average only 1 out of 20 births in rural areas was attended by a doctor, due chiefly to pervasive and extremely shortages of medical personnel, facilities, and equipment. In parts the country, health care was virtually nonexistent.

Government studies sponsored by U.N. agencies in 1997 found that of children under 3 years old, 37 percent were malnourished and 13 percent were severely malnourished. Many families subsisted on one meal of rice per day.

Child prostitution and trafficking in girls for the purpose of forced prostitution--especially Shan girls who were sent or lured to Thailand, continued to be a major problem (see Section 6.f.). Reports from Thailand indicated that the rising incidence of HIV infection there has increased the demand for supposedly "safer" younger prostitutes.

The army conscripts children as young as the age of 14, especially orphans and street children; they are deployed to training camps where they support the military forces. In combat areas the military forces continued to force children to labor as porters, and often subjected them to beatings (see Sections 1.f., 1.g., 6.c. and 6.d.).

Religious Minorities

The great majority of the country's population at least nominally follow Theravada Buddhism. There are minorities of Christians (mostly Baptists as well as some Catholics and Anglicans), Muslims (mostly Sunni), Hindus, and practitioners of traditional Chinese and indigenous religions. There is some correlation between ethnicity and religion. In much of the country there is also some correlation between religion and social class, in that non-Buddhists tend to be better educated in secular matters, more urbanized, and more commercially oriented than the Buddhist majority.

There are social tensions between the Buddhist majority and the Christian and Muslim minorities, due in large part to government preference in practice (although not in law) both for non-Buddhists during British colonial rule and for Buddhists since independence.

Non-Buddhists continued to experience discrimination at upper levels of the public sector. Only one non-Buddhist served in the Government at ministerial level, and the same person, a brigadier general, is the only non-Buddhist known to have held flag rank in the armed forces during the 1990's. The Government discourages Muslims from entering military service, and Christian or Muslim military officers who aspire to promotion beyond the middle ranks are encouraged by their superiors to convert to Buddhism.

There were credible reports that during the spring anti-Islamic booklets were distributed throughout the country through the USDA. This report followed other reports in recent years of government instigation or toleration of violence against Muslims. Even though the Government reportedly contributed to or instigated anti-Muslim violence in Arakan State in 1991, in Shan

State and Rangoon in 1996, and in cities throughout the country in 1997, its reported ability to do so repeatedly reflects widespread prejudice against Muslims, many of whom are ethnic Indians or Bengalis.

Members of the Muslim Rohingya minority in Arakan State, on the country's western coast, continued to experience severe legal, economic, and social discrimination. The Government denies citizenship status to most Rohingyas on the grounds that their ancestors allegedly did not reside in the country at the start of British colonial rule, as required by the country's highly restrictive citizenship law. In 1991 tens of thousands of Rohingya, according to some reports as many as 300,000, fled from Arakan State into Bangladesh following anti-Muslim violence alleged although not proven to have involved government troops. Rohingyas who have returned to Arakan complained of government restrictions on their ability to travel and to engage in economic activity.

There are credible reports that government authorities in Arakan State have compelled Muslims to build Buddhist pagodas as part of the country's forced conscription labor program (see Section 6.c.). In March the Government forcibly relocated about 200 Buddhists from Dagon Township in Rangoon to Arakan State; this had the effect of increasing the population of Buddhists in a region with a large Muslim population (see Section 1.f.). On November 19, in Arakan State's Maungdaw Township, Myint Tun, director of the state's Buddhist Religious Association, accompanied by officials of a local Buddhist religious center, reportedly visited the village of lower Purma and ordered the village headman to demolish the village's largest and oldest mosque, without citing any reason.

Since 1994 when the progovernment Democratic Karen Buddhist Army (DKBA) was organized, there has been armed conflict between the DKBA and the Christian-led Karen National Union. This armed conflict between two nongovernmental Karen organizations has had strong religious overtones. During the mid-1990's, it was reportedly common DKBA practice to to torture Christian villagers and kill them if they refused to convert to Buddhism, and during 1998 DKBA troops in Ler Doh Township in Karen State reportedly posted signs in front of churches warning that they would kill anyone attending those churches on Sundays. In recent years, a Karen Christian fundamentalist insurgent group that called itself God's Army has split from the KNU (see Section 1.g.).

People with Disabilities

In principle official assistance to the disabled includes two-thirds of pay for up to 1 year of a temporary disability and a tax-free stipend for permanent disability; however, in practice assistance is extremely limited. There is no law mandating accessibility to buildings, public transportation, or government facilities. While there are several small-scale organizations to assist the disabled, most disabled persons must rely on their families to provide for their welfare. Disabled veterans receive available benefits on a priority basis. Because of landmine detonations, there is a high rate of amputee injuries.

National/Racial/Ethnic Minorities

Wide-ranging governmental and societal discrimination against minorities persists.

Animosities between the country's many ethnic minorities and the Burman majority, which has dominated the Government and the armed forces since independence, continued to fuel at least four active ethnic insurgencies that resulted in many killings and other serious abuses (see Section 1.g.). Some frequently reported abuses included killings, beatings, and rapes of Chin, Karen, Karenni, and Shan by mostly Burman army soldiers. During the past decade, the junta has sought to pacify these ethnic groups by means of negotiated cease-fires, grants of limited autonomy, and promises of development assistance.

The Government continued to discriminate systematically against non-Burmans. National identity cards and passports generally denoted the ethnicity of non-Burmans either explicitly or through the use of a personal title in the ethnic minority language rather than Burmese. Ethnic minority areas that were remote from active insurgent operations, such as the large

Karen areas of Irrawaddy Division, experienced tighter controls on personal movement including more frequent military checkpoints, closer monitoring by military intelligence, and larger military garrisons and hence more informal taxes, than comparable Burman areas.

Ethnic minority groups generally had their own primary languages. However, throughout all parts of the country controlled by the Government, including ethnic minority areas, Burmese remained the sole language of instruction in all state schools. Even in ethnic minority areas, primary and secondary state schools did not offer any instruction in the local ethnic minority language even as a second language. There were very few domestic publications in indigenous minority languages. In some ethnic minority areas such as Chin State, there continued to be many reports that the army offered financial and career incentives for Burman soldiers to marry Chin women, teach them Burmese, and convert them to Buddhism. Throughout the 1990s, there were credible reports that the junta resettled groups of Burmans in various ethnic minority areas.

The ethnic minority populations continued to complain that their concerns have not been addressed adequately by the Government. Economic development among minorities has continued to lag, leaving many persons living at or below subsistence levels.

There are ethnic tensions between the Burmans and nonindigenous ethnic populations including Indians, many of whom are Muslims, and a rapidly growing population of Chinese, mostly recent immigrants from Yunnan province that increasingly dominates the economy of the northern part of the country. Both groups have tended to be more commercially oriented and hence more prosperous and economically powerful than Burmans, and their members commonly have discriminated based on ethnicity in hiring, buying, and selling.

Since only persons who can prove long familial links to the country are accorded full citizenship, nonindigenous ethnic populations continued to be denied full citizenship and to be excluded from government positions. Persons without full citizenship continued to face restrictions in domestic travel and to be barred from certain advanced university programs in medicine and technological fields (see Section 2.d.).

Section 6 Worker Rights

The Right of Association

The 1926 Trade Unions Act, which remained in effect, permits the formation of trade unions only with the prior consent of the Government; however, free trade unions do not exist in the country, and the junta has dissolved even the government-controlled that existed before 1988.

There were no strikes during the year. The last reported strike was in December 1997, when workers in a foreign-owned textile factory in Pegu staged a successful 4-day strike.

Because of its longstanding violation of ILO Convention 87 on freedom of association, the 1998 ILO Conference cited the Government for continued failure to implement that convention. The Conference criticized both lack of progress and absence of cooperation on the part of the Government. On June 17, the Foreign Ministry issued a press release stating that it would "cease participation in activities connected with Convention 87," thereby in effect withdrawing from that Convention.

The Government also continued to require that citizens who found work on foreign vessels through its Seafarers' Employment Control Division (SECD) neither contact nor participate in any activities of the International Transport Workers' Federation (ITF).

No unions are affiliated internationally.

In 1989 the United States suspended Burma's eligibility for trade concessions under the Generalized System of Preferences (GSP) program, pending steps to afford its labor force internationally recognized worker rights.

b. The Right to Organize and Bargain Collectively

Workers do not have the right to organize and bargain collectively to set wages and benefits. The Government's Central Arbitration Board, which once provided a means for settling major labor disputes, continued to exist but in practice has been dormant since 1988. Township-level labor supervisory committees existed to address minor labor concerns.

The Government unilaterally set wages in the public sector. In the private sector, market forces generally set wages. However, the Government pressured joint ventures not to pay salaries greater than those of ministers or other senior employees. Some joint ventures circumvented this with supplemental pay, as well as through incentive and overtime pay and other fringe benefits. Foreign firms generally set wages near those of the domestic private sector but followed the example of joint ventures in awarding supplemental wages and benefits.

There were no export processing zones. However, there were special military-owned industrial parks, such as Pyin-ma-bin near Rangoon, which attracted foreign investors and often manufactured for export by offering cheaper labor than was available elsewhere. These were tantamount to export processing zones in many respects.

c. Prohibition of Forced or Compulsory Labor

Forced or compulsory labor remained a widespread and serious problem. Although the Penal Code provides for the punishment of persons who impose forced labor on others, there were no known cases of the application of this provision. Throughout the country, international observers have confirmed that the Government routinely continued to force citizens to work on infrastructure construction and maintenance projects. The law does not prohibit forced and bonded labor by children specifically, and forced labor by children occurs.

On June 17, the ILO Conference suspended Burma from receiving ILO technical assistance or attending ILO meetings due to the Government's "flagrant and persistent failure to comply" with Convention 29 on forced labor. The ILO Conference's action followed an exhaustive 1998 report by an ILO Special Commission of Inquiry into Forced Labor in Burma, which concluded, based on 6,000 pages of documentation, that there was abundant evidence of pervasive use of forced labor in the country. The Special Commission of Inquiry found that women, children, and the elderly were unduly required to perform forced labor; that porters often were sent into dangerous military situations, rarely received medical treatment, and were almost never compensated; that forced laborers frequently were beaten; and that some women performing forced labor were raped or otherwise abused sexually by soldiers. On June 17, the Ministry of Foreign Affairs issued a press release stating that the Government would "cease participation in activities connected with Convention 29."

Since precolonial times, the country's rulers have imposed large forced labor obligations on its inhabitants for military, economic, or religious purposes. However, from 1992 to 1996, the junta significantly increased the State's use of forced labor to meet its infrastructure development goals. After 1996, when the Government announced that military personnel would provide labor for infrastructure projects, the use of unpaid civilian labor on physical infrastructure projects, especially for irrigation projects and railroad building, diminished. Nonetheless, the use of forced labor on such projects has remained widespread.

Many detailed credible reports indicate that in recent years, especially in areas inhabited chiefly by members of the Chin, Karen, Karenni, and Shan ethnic groups, army units have increased greatly their use of forced labor for logistical support purposes, including to build, repair, or maintain army camps and roads to them, as well as to plant crops, cut or gather wood or bamboo, cook, clean, launder, weave baskets, fetch water for army units--and, in the case of young women, to provide sexual services to soldiers. The number of reports of this practice has increased since 1997, when the junta required regional military commanders to become more self-sufficient logistically (see Sections 1.f. and 1.g.).

Authorities continued to impose forced labor chiefly, although not exclusively, on rural populations, and imposed forced labor quotas on villages, households, or persons directly or through village headmen. Government authorities often allowed households or persons to substitute contributions of money or food for contributions of labor for infrastructure projects, but

widespread rural poverty obliged most households to contribute labor. The State allocated funds to regional and local authorities to pay wages to at least some of the civilians on whom it imposed labor obligations; however, these wages were set at levels that were below rural market wages, and reports indicated that local authorities commonly did not disburse allocated funds to workers. Especially in ethnic minority areas, the army often deployed soldiers to guard persons engaged in forced labor; there continued to be reports that such soldiers often beat and occasionally killed workers (see Sections 1.a. and 1.c.).

During the year, in Sagaing Division over 1,000 persons were herded into a "volunteer labor camp" and forced to work to build a railroad; at least 17 reportedly died from malaria. Authorities in Irrawaddy Division's Nga-Thaing-Chaung Township forced villagers to build an embankment or pay about \$1.60 (500 kyat) per person, and detained for 17 days a woman who protested, citing government statements that there was no forced labor in the country. In April authorities in Rangoon Division's Htan-Da-Bin Township ordered villagers to work on a road between Hle-Seik and Kyun Ngu villages; after some villages failed to appear, the authorities sent a letter to village ward leaders threatening to fine them if they failed to contribute labor the next day. In May authorities in Rangoon Division ordered villagers to work on a road from Insein to Nyaung Don or pay a fine of about \$1 (300 kyat) per household; police threatened residents with beatings or detention if they refused and arrested those who did not comply. In May authorities in Sagaing Division's Hsar-Lin-Gyi Township forces persons from 42 village tracts to work on the Taung-Yama dam near Mwe-Tone Village, or pay a fine of slightly more than \$2 (700 kyat) per household. In June, authorities forced all villagers including children to build a 20-mile road between the towns of Myo Tha and Tada Oo; about 1,000 persons worked on the road every day. In June authorities in Sagaing Division forced villagers to build a canal in the industrial zone in Monywa Township; every 10 households were required either to dig a hole 66 feet long, 15 feet wide, and 5 feet high, or to pay a fine of about \$3 (800 to 1,000 kyat) per household; in March authorities forced villagers from the same area to build a drainage canal for the Chindwin Rivier. In a May report, the ILO's Director General described more than a dozen other reports of forced labor on infrastructure projects between August 1998 and May. In Irrawaddy Division, two villagers who failed to provide forced labor or pay fines were convicted and sentenced to 15 years' imprisonment under the provisions of the Villages Act.

There continued to be reports that the Government used forced labor to construct infrastructure to support tourism. During the year, government officials used forced labor to build the approach road to the international airport being built near Mandalay; officials reportedly went door-to-door in villages outside Mandalay, ordering each household to contribute either about \$1 (300 kyat) or one person's labor to the project, and most households contributed labor. Government officials also used forced labor to prepare the historic city of Mrauk-Oo in Arakan State for expected tourist and VIP arrivals.

Starting in late 1998 and continuing throughout the year, the Government began to use large amounts of forced labor on a project to double the amount of cultivated land in the country by developing 22 million acres of wetlands and virgin lands. This involved the establishment of "labor villages" to help private entrepreneurs, including foreign investors, to develop wetlands. In December 1998, government authorities instructed each village tract from 8 townships in Sagaing Division to provide 2 villagers to work on 500 acres of land per township for a project to reclaim about 4,000 acres of virgin land; in addition, each household was required to give about \$0.70 (200 kyat) each to the authorities to buy food for workers on the project. During the first half of the year, officials of the military's Northwest Command forced villagers in Sangaing Division's Yinmarbin Township to provide uncompensated labor or else pay more than \$3 (1,000 kyat) per person to reclaim 2,000 acres of fallow land. Authorities in another township in Sagaing Division reportedly forced villagers to clear 1,000 acres of land or pay a fine of more than \$10 (3,500) kyat per household. Authorities in Irrawaddy Division ordered residents of a village both to clear over 100 acres of land as part of a wetlands reclamation project, and to pay for equipment needed to clear the land.

Government authorities also forced both Buddhists and non-Buddhists to work to build, repair, or maintain Buddhist religious facilities. In Twantay Township in Rangoon Division, authorities forced villagers to guard the ancient Danoke Pagoda, which has been under renovation, and to gather wood, fetch water, and perform other tasks for soldiers involved in the project. Villagers were allowed to pay money to be exempted from pagoda guard duty. In Bogalay Township in Irrawaddy Division, authorities forced villagers to construct 32 miles of road between Pe-Chaung village and Kadone village, or else to hire substitutes, which cost about \$15 to \$30 (5,000 to 10,000 kyat) at market wages. The road was being built for the use of Buddhist pilgrims at the request of the Pe-Chaung monastery. In predominantly Islamic Maungdaw District in Arakan State,

authorities required villagers to build a Buddhist pagoda in Dail Fara; residents of one village said they had to provide 10 laborers per week. Buddhist monks and army authorities reportedly forced Chin villagers, most of whom were not Buddhists, to labor for months without pay to repair a Buddhist pagoda that collapsed in Chin State's Falam Township in July (see Section 2.c.).

The army continued to force citizens--including women and children--to work as porters in military actions against ethnic insurgents. This practice continued to lead to mistreatment, illness and death (see Sections 1.a., 1.c., and 1.g.). Both the May report of the ILO'S Director General and reports during the year by NGO's including Amnesty International described dozens of reports of forced portage.

Parents routinely called upon their children to help fulfill their households' forced labor obligations, without opposition by the Government (see Section 6.d.).

There were numerous, detailed and jointly credible reports that forced labor, including forced child labor, was used directly in growing and harvesting some crops, chiefly for army units. Widespread forced labor including forced child labor continued to contribute materially to the construction and maintenance not only of irrigation facilities important to the cultivation of some export crops including rice, but also of roads and some railroads important for the transportation of exports to ports. Forced labor, including forced child labor, has contributed materially to the construction of industrial parks subsequently used largely to produce manufactured exports including garments. There have been many credible reports that forced labor, including forced child labor, has been used widely since 1998 to clear and drain virgin lands and wetlands for the cultivation of crops many of which, according to public descriptions of the Government's economic plans, are intended largely for export.

There have been unconfirmed reports about the use of forced labor on past individual projects by both government and nongovernment actors.

Trafficking in women and girls to neighboring countries for the purpose of forced prostitution remained a serious problem (see Sections 5 and 6.f.).

d. Status of Child Labor Practices and Minimum Age for Employment

Although the law sets a minimum age of 13 for the employment of children, in practice the law is not enforced. Working children are highly visible in cities, mostly working for small or family enterprises, and in family agricultural activities in the countryside. Children working in the urban informal sector in Rangoon and Mandalay often start work at young ages. Children are hired at lower pay rates than adults for the same kind of work. In the urban informal sector, child workers are found mostly in food processing, selling, refuse collecting, light manufacturing, and as tea shop attendants. Despite a compulsory education law, almost 50 percent of children never enroll in school, and only 40 percent of them complete the 5-year primary school course (see Section 5).

The law does not specifically prohibit forced and bonded labor by children; while bonded labor is not practiced, forced labor by children occurs. The military Government not only tolerates child labor, but also uses children as porters in infrastructure development and in providing other services to military forces (see Section 6.c.). Households tend to satisfy forced labor quotas by sending their least productive workers, and government authorities accepted such workers in satisfaction of those quotas. Many children often have been seen working on gangs building or repairing roads and irrigation facilities. In recent years, there have been growing numbers of reports that military units in various ethnic minority areas either forced children to perform logistical support services, such as fetching water, cleaning, cutting bamboo, or cultivating food crops, or allowed households or villages to use children to satisfy army orders to perform such services (see Sections 1.f. and 6.c.).

e. Acceptable Conditions of Work

Only government employees and employees of a few traditional industries were covered by minimum wage provisions. The minimum monthly wage for salaried public employees is \$2.00 (600 kyats) for what was in effect a 6-hour workday. Various subsidies and allowances supplement this sum. Neither the minimum wage nor the higher wages earned even by senior government officials provides a worker and family with a decent standard of living. Low and falling real wages in the public sector have fostered widespread corruption. In the private sector, urban laborers earned about \$0.70 per day (200 kyat), while rural agricultural workers earn about half that rate. Some private sector workers earn substantially more; a skilled factory worker earns about \$15 per day (4,500 kyat).

Surplus labor conditions, a dismal economy, and lack of protection by the Government continues to dictate substandard conditions for workers. The 1964 Law on Fundamental Workers Rights and the 1951 Factories Act regulate working conditions. There is a legally prescribed 5-day, 35-hour workweek for employees in the public sector and a 6-day and a 44-hour workweek for private and state enterprise employees, with overtime paid for additional work. The law also allows for a 24-hour rest period per week, and workers have 21 paid holidays per year. However, in practice such provisions benefitted only a small portion of the country's labor force, since most of the labor force was engaged in rural agriculture.

Numerous health and safety regulations exist, but in practice the Government has not made the necessary resources available to enforce the regulations. Although workers may in principle remove themselves from hazardous conditions, in practice many workers cannot expect to retain their jobs if they do so.

f. Trafficking in Persons

No law was known specifically to prohibit trafficking in persons; however, there were laws, including laws against abduction, that prohibited some aspects of trafficking.

Trafficking in women and children is a severe problem. Burma is a source country for thousands of women and young girls who are trafficked into the commercial sex industries of neighboring countries. There are reliable reports that many women and children in border areas, where the Government's control is limited, were forced or lured into working as prostitutes in Thailand and China. It is unknown how many young women have been induced or coerced into working as prostitutes, but a common practice is to lure young women to Thailand with promises of employment as a waitress or domestic servant.

Government efforts to stop trafficking in young women are limited and relatively ineffective. In recent years the Government has made it difficult for women to obtain passports or marry foreigners in order to reduce the outflow of women both as victims of trafficking and for other reasons (see Sections 1.f. and 2.d.). However, most citizens who were forced or lured into prostitution crossed the border into Thailand without passports. It is illegal to leave Burma without government authorization.

Child prostitution of girls, especially from the Shan ethnic minority sent or lured to Thailand, continued to be a major problem.

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